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MOTION FOR ATTORNEY FEES

The Court tenders the following tentative decision in the matter Max Media v. FCA US LLC, Los Angeles County Superior Court case number 24STCV06218, set for hearing on September 9, 2026. Max Medina (Plaintiff) moves for an award of attorney's fees and costs in the amount of \$49,355.24 against FCA US LLC (Defendant). Plaintiff's motion is granted in the partial amount of \$34,621.24.

A.

Legal Standard

"[A]s a general rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.) If the buyer prevails on an action under the Song-Beverly Consumer Warranty Act, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

"In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other

costs.” (Civ. Code, § 1717, subd. (a).) The court may determine fees pursuant to the section upon notice and motion by a party. The party prevailing on the contract is that “who recovered a greater relief in the action on the contract.” (Id., § 1717, subd. (b)(1).) The court may also determine that there is no prevailing party.

The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) A plaintiff’s verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In determining whether the requested attorney’s fees are “reasonable,” the Court’s “first step involves the lodestar figure—a calculation based on the number of hours reasonably expended multiplied by the lawyer’s hourly rate. The lodestar figure may then be adjusted, based on consideration of facts specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Gorman v. Tassajara Development Corp. (2008) 178 Cal.App.4th 44, 92.) In determining whether to adjust the lodestar figure, the Court may consider the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm LLC v. Teitler (2008) 162 Cal.App.4th 770, 774.)

Under Civil Code section 1794, courts must first make an initial determination of the actual time expended before ascertaining whether that amount of time and the amount thus charged are reasonable. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34.) In making such a determination, courts are to consider the complexity of the case, procedural demands, skill exhibited by counsel, and results achieved. (Ibid.) If the time expended or resulting charge are not reasonable under these circumstances, the trial court must award a lesser amount. (Ibid.) It is

the prevailing buyer's burden to show that the fees incurred were allowable, reasonably necessary to the litigation, and reasonable in amount. (Ibid.)

B. Discussion

Plaintiff moves for a total award of attorney's fees and costs in the amount of \$49,355.24, consisting of \$43,381 in fees related to the underlying action, \$2,175 in fees related to this motion, and \$3,799.24 in costs and expenses. As a prevailing party, under the Song-Beverly Act Plaintiff is entitled to attorney's fees based on actual time expended. (Civ. Code, § 1794, subd. (d).)

Counsel is awarded \$30,822 in attorney's fees.

Plaintiff seeks an award of \$43,381 in attorney's fees based on 108.6 hours of alleged attorney time at rates ranging from \$215 to \$560 per hour, with an additional \$2,175 requested relating to Plaintiff's review of Defendant's opposition to the present motion, drafting a reply, and attending the hearing. (Bourque Decl., Ex. 10.) Defendant challenges the hourly rates claimed by Plaintiff as unreasonable. Generally, it argues that the Court should apply the standards of the "Real Rate Report," while Plaintiff maintains that the "Laffey Matrix" is a better estimate. The Court does not find either metric to be dispositive. The Court knows that hourly rates vary greatly from firm to firm. And when motions for fees are made based on attorney's claims of value as distinct from a negotiated rate, there is reason to take a careful look at what is claimed. Defendant challenges the hourly rate claimed by the most prolific attorney (75 of the total 108 hours) to work on this matter, Gabriel Eredia. Counsel testifies that Eredia joined its firm in January 2024 after being admitted to the California State Bar the previous month. (Bourque Decl. ¶ 14.) Counsel asserts an hourly rate of \$435 for Eredia. But Eredia had only been an attorney for four months when he began working on this case. Based on this, the Court believes a more reasonable rate is \$300 per hour. The indicated charge for this time at \$435 is \$32,625. The indicated charge at \$300 per hour is \$22,500. The Court will reduce by \$10,125 the fees applicable to Eredia. With this adjustment, the fee request is \$33,256 (not including the \$2,175 claimed on this motion).

Next, Defendant raises many objections to the fees claimed by Plaintiff

as excessive. The Court will address each in turn. First, Defendant argues that counsel is not entitled to recover \$4,042.50 in fees for time associated with reviewing the present case. However, strategy discussions among various attorneys working on a case are reasonably incurred and important to litigation. Thus, the Court credits these fees.

Second, Defendant argues that counsel is not entitled to recover \$9,306 in fees related to Plaintiff's motion to compel further responses to his requests for production of documents, set one. Indeed, the Court denied the motion on June 11, 2025, and did not award sanctions. The Court agrees that fees are not warranted for an unnecessary motion, but Plaintiff challenges Defendant's proposed reduction. After reviewing the entries identified by Defendant, the Court determines that only a \$4,609 reduction is necessary, based on counsel's research for the motion, drafting of the motion, declaration, order, and reply brief, and attending the hearing.

Third, Defendant argues that the \$3,819 billed to prepare Eredia to take a deposition is excessive. In total, Eredia spent almost 7 hours preparing. The Court agrees that this is a high number, but given the reduction in Eredia's rate to reflect his experience level, the Court will approve the stated time.

Fourth, Defendant challenges the \$1,867.50 in fees related to preparing subpoenas. However, the preparation of subpoenas does require reviewing records and other tasks; the Court does not view these claimed fees as unreasonable. Thus, the Court credits these fees.

Fifth, Defendant challenges \$3,001.50 in fees related to unnecessary entries. Defendant argues that counsel has billed excessively for creating outlines to prepare for standard hearing and researching various matters. The Court does not find these claimed fees unreasonable. It is proper to exercise diligence in litigating matters, even when they are formulaic or involve familiar issues, such as in Song-Beverly litigation. Thus, the Court credits these fees as well.

Sixth, Defendant challenges \$1,680 in fees for the completion of clerical tasks by counsel and paralegals of administrative coordination activity as excessively billed. After reviewing those entries highlighted by Defendant, the Court does not find them to be clerical in nature. They involve document review, correspondence with counsel, and motion practice. Thus, they

are properly compensable entries which the Court credits.

Seventh, Defendant challenges the \$2,175 in anticipated attorney's fees with respect to the present motion, including reviewing Defendant's opposition and drafting a reply. However, based on Defendant's fervent opposition, such fees are reasonable. Counsel compiled evidence to support their fee claims, carefully drafted the initial motion, and drafted a very detailed reply addressing every challenge made by Defendant to the fee motion. Thus, these hours are properly justified as well.

Accordingly, Plaintiff is awarded \$30,822 in fees ([adjusted fee request of \$33,256 – [\$4,609 from MTCF] + [\$2,175 fees related to reply and hearing] = \$30,822).

Counsel is not entitled to a negative fee multiplier.

Defendant seeks an undefined negative lodestar multiplier. Counsel bases this on the simplicity of the present case and the ability of Plaintiff's attorneys to simultaneously prosecute other cases. However, while the present action is a highly formulaic Song-Beverly case, it is not so simple as to warrant a negative multiplier. This is particularly true when taking into account Defendant's own litigation efforts in this matter. Thus, the Court does not impose a negative multiplier.

Defendant does not challenge the \$3,799.24 Plaintiff claims in costs. Thus, the Court awards Plaintiff \$34,621 in attorney's fees and costs ([\$30,822 in attorney's fees] + [3,799.24 in costs] = \$34,621.24).

Conclusion:

The Court grants Plaintiff's motion in the partial amount of \$34,621.24.